MASTER SERVICES AGREEMENT

between Alpha Tech Solutions Ltd. and Beta Retail Co.
Effective Date: 1 January 2026

Sample document: this agreement is fictional and was written only to demonstrate a document question-answering system. It is not legal advice and must not be signed or relied upon.

PARTIES

This Master Services Agreement (the **Agreement**) is made on the Effective Date between **Alpha Tech Solutions Ltd.**, a company that provides software development and managed IT services (the **Service Provider**), and **Beta Retail Co.**, a retail company (the **Client**). The Service Provider and the Client are each a **Party** and together the **Parties**.

BACKGROUND

The Client wishes to appoint the Service Provider to design, build and operate an online ordering and inventory platform, and the Service Provider has agreed to provide these services on the terms of this Agreement.

1. DEFINITIONS

Term	Meaning
Services	The software development, hosting, maintenance and support services described in Schedule A.
Deliverables	All software, documents and materials that the Service Provider creates for the Client under this Agreement.
Confidential Information	Any non-public information disclosed by one Party to the other, in any form, that is marked confidential or would reasonably be understood to be confidential.
Monthly Fee	The recurring fee of $12,500 described in Clause 3.
Business Day	Any day other than a Saturday, Sunday or public holiday in the place where the Service Provider is based.
Personal Data	Any information relating to an identified or identifiable individual that is processed under this Agreement.

2. SCOPE OF SERVICES

2.1 The Service Provider shall provide the Services in accordance with this Agreement, Schedule A (Services and Jurisdiction) and Schedule B (Service Levels).

2.2 Any change to the Services must be agreed in writing in a change request signed by both Parties. The Service Provider is not required to perform extra work until a change request has been signed, and the fees for the extra work will be stated in the change request.

2.3 The Client shall provide timely access to information, systems and personnel that the Service Provider reasonably needs. The Service Provider is not responsible for delays caused by the Client's failure to do so.

3. TERM

3.1 This Agreement starts on the Effective Date and continues for an **initial term of 24 months**.

3.2 After the initial term the Agreement renews automatically for successive periods of **12 months** unless either Party gives the other at least **60 days' written notice** before the end of the current term that it does not want to renew.

4. FEES AND PAYMENT

4.1 **Monthly Fee.** The Client shall pay the Service Provider a Monthly Fee of **$12,500** for the operation, hosting and support of the platform. The Monthly Fee is invoiced monthly in advance.

4.2 **Implementation Fee.** The Client shall pay a one-time Implementation Fee of **$30,000** for the design and build of the platform, payable in three instalments linked to milestones, as shown in the Payment Milestones table below.

Payment milestones - Implementation Fee ($30,000)

Milestone	Share	Amount	Due
Signing of this Agreement	40%	$12,000	On signing
Platform go-live	30%	$9,000	Within 15 days of go-live
Final acceptance	30%	$9,000	Within 15 days of acceptance

Table 1 - Payment milestones for the Implementation Fee

4.3 **Payment terms.** Undisputed invoices are payable within **30 days** of the invoice date (net 30). All fees are exclusive of taxes, which the Client shall pay where applicable.

4.4 **Late payment.** Overdue amounts carry interest at **1.5% per month** from the due date until payment. If an undisputed invoice is more than 30 days overdue, the Service Provider may suspend the Services after giving 10 days' written notice.

4.5 **Disputed invoices.** The Client shall notify the Service Provider of a disputed amount in writing within 14 days of the invoice date, pay the undisputed part, and the Parties shall work in good faith to resolve the dispute.

5. INTELLECTUAL PROPERTY

5.1 Each Party keeps the intellectual property rights it owned before this Agreement. The Service Provider's pre-existing tools, libraries and methods remain the Service Provider's property.

5.2 The Client owns the Deliverables once the Client has paid the related fees in full. Until then the Client has a limited licence to use the Deliverables for its own business.

5.3 The Service Provider grants the Client a non-exclusive, perpetual, royalty-free licence to use any of the Service Provider's pre-existing materials that are built into the Deliverables, only as part of those Deliverables.

6. CONFIDENTIALITY

6.1 Each Party shall keep the other Party's Confidential Information secret, use it only to perform this Agreement and share it only with employees and advisers who need to know it and are bound by similar duties.

6.2 The duty of confidentiality continues for **5 years** after this Agreement ends. Trade secrets stay protected for as long as they remain trade secrets.

6.3 The duty does not apply to information that:

- is or becomes public without a breach of this Agreement;
- was already lawfully known to the receiving Party;
- is independently developed without use of the Confidential Information; or
- is lawfully received from a third party who has no duty of confidence.

6.4 A Party may disclose Confidential Information when required by law or by a court, provided it gives the other Party prompt written notice (where the law allows) and discloses only what is required.

7. WARRANTIES

7.1 The Service Provider warrants that it will perform the Services with reasonable skill and care, using suitably qualified personnel.

7.2 If the Services do not meet this warranty and the Client notifies the Service Provider within **90 days** of performance, the Service Provider shall re-perform the Services at no extra cost. This re-performance is the Client's only remedy for breach of the warranty in Clause 7.1.

7.3 Except as stated in this Agreement, the Service Provider gives no other warranties, express or implied, including that the platform will be completely error free or uninterrupted.

8. LIMITATION OF LIABILITY

8.1 **Cap.** Each Party's total liability to the other under or in connection with this Agreement, whether in contract, tort (including negligence) or otherwise, is limited to the total fees paid and payable by the Client in the **12 months** before the event that gave rise to the claim.

8.2 **Excluded losses.** Neither Party is liable for indirect or consequential loss, loss of profit, loss of revenue, loss of goodwill or loss of anticipated savings.

8.3 **Exceptions.** Clauses 8.1 and 8.2 do not limit liability for:

- death or personal injury caused by negligence;
- fraud or fraudulent misrepresentation;
- gross negligence or wilful misconduct;
- breach of the confidentiality obligations in Clause 6; or
- the indemnities in Clause 9.

9. INDEMNIFICATION

9.1 The Service Provider shall defend and indemnify the Client against third-party claims that the Deliverables, as provided by the Service Provider, infringe that third party's intellectual property rights. This does not apply to claims caused by changes made by the Client or by use of the Deliverables in combination with items the Service Provider did not supply.

9.2 The Client shall defend and indemnify the Service Provider against third-party claims arising from the data, content or instructions that the Client provides to the Service Provider.

9.3 The indemnified Party must give prompt written notice of a claim, allow the indemnifying Party to control the defence and settlement, and give reasonable help at the indemnifying Party's cost.

10. DATA PROTECTION

10.1 The Service Provider shall process Personal Data only on the Client's documented instructions and only to provide the Services.

10.2 The Service Provider shall apply appropriate technical and organisational security measures, including encryption of Personal Data in transit and at rest and access controls limited to authorised staff.

10.3 The Service Provider shall notify the Client without undue delay and in any event within **72 hours** after becoming aware of a Personal Data breach, and shall give the information the Client reasonably needs to meet its own legal duties.

10.4 The Service Provider may use sub-processors only with the Client's prior written consent and remains responsible for their acts and omissions.

10.5 When the Agreement ends, the Service Provider shall, at the Client's choice, return or delete all Personal Data within **30 days** and confirm the deletion in writing.

11. SERVICE LEVELS

11.1 The Service Provider shall make the platform available at least **99.5%** of the time in each calendar month, excluding planned maintenance announced at least 48 hours in advance. Response and resolution targets, and service credits for missed availability, are set out in Schedule B.

11.2 Service credits are the Client's sole financial remedy for failure to meet the availability target, without limiting the Client's right to terminate for repeated or serious failure under Clause 12.

12. TERMINATION

12.1 **For convenience.** The Client may terminate this Agreement for convenience by giving the Service Provider 90 days' written notice. The Service Provider may terminate for convenience by giving the Client 180 days' written notice.

12.2 **Early termination fee.** If the Client terminates for convenience during the first 12 months after the Effective Date, the Client shall also pay an early termination fee equal to **three months' Monthly Fees** ($37,500).

12.3 **For material breach.** Either Party may terminate this Agreement by written notice if the other Party commits a material breach and does not fix it within **30 days** after receiving written notice describing the breach.

12.4 **Insolvency.** Either Party may terminate immediately by written notice if the other Party becomes insolvent, enters bankruptcy, liquidation or administration, or stops carrying on business.

Termination at a glance

Type	Who can use it	Notice / cure period
For convenience	Client	90 days' written notice
For convenience	Service Provider	180 days' written notice
For material breach	Either Party	30 days to cure after notice
For insolvency	Either Party	Immediate, by written notice

Table 2 - Termination rights and notice periods

12.5 **Effect of termination.** On termination or expiry: (a) the Client shall pay all fees due up to the termination date; (b) each Party shall return or destroy the other's Confidential Information within **15 days**; (c) the Service Provider shall give reasonable help to move the platform to the Client or a new provider for up to 60 days, at its standard hourly rates; and (d) clauses that are meant to continue, including Clauses 5, 6, 8, 9 and 14, survive.

13. FORCE MAJEURE

13.1 Neither Party is liable for delay or failure caused by events beyond its reasonable control, such as natural disaster, war, terrorism, epidemic, government action, power or network failure not caused by the Party, or industrial action by people outside that Party (a **Force Majeure Event**), provided it notifies the other Party promptly and tries to reduce the effect.

13.2 If a Force Majeure Event continues for more than **30 consecutive days**, either Party may terminate this Agreement by written notice without liability for that termination. Payment obligations for Services already performed continue.

14. GOVERNING LAW AND DISPUTE RESOLUTION

14.1 This Agreement and any dispute arising from it are governed by the law of the jurisdiction named in Schedule A (**Singapore**).

14.2 The Parties shall resolve disputes in this order:

1. **Executive escalation:** senior executives of both Parties meet within 15 days after one Party gives a written dispute notice.
2. **Mediation:** if not solved, the Parties try mediation with a mutually agreed mediator for up to 30 days.
3. **Arbitration:** if still not solved, the dispute is finally decided by a single arbitrator. The seat of arbitration is Singapore and the language is English. The decision is final and binding.

14.3 Either Party may ask a court at any time for urgent interim relief, for example to protect Confidential Information or intellectual property.

14.4 Each Party bears its own costs of mediation and arbitration, and the Parties share the fees of the mediator and arbitrator equally, unless the arbitrator decides otherwise.

15. GENERAL PROVISIONS

15.1 **Notices.** Notices must be in writing and sent by email to the address in Schedule A with a copy by courier to the Party's registered address. A notice is treated as received on the next Business Day after emailing, or 3 Business Days after being sent by courier.

15.2 **Assignment.** Neither Party may assign or transfer its rights or duties under this Agreement without the other Party's prior written consent, which must not be unreasonably withheld. A merger or sale of all or substantially all of a Party's business does not need consent if the new owner accepts this Agreement in writing.

15.3 **Independent contractors.** The Parties are independent contractors. Nothing in this Agreement creates a partnership, joint venture or employment relationship.

15.4 **Non-solicitation.** During this Agreement and for 12 months afterwards, neither Party shall directly solicit for employment any employee of the other Party who worked on the Services, except through general job advertisements.

15.5 **Entire agreement.** This Agreement, with its Schedules, is the entire agreement between the Parties on its subject and replaces all earlier discussions. Changes must be in writing and signed by both Parties.

15.6 **Severability and waiver.** If any part of this Agreement is found unenforceable, the rest continues. A delay in using a right is not a waiver of that right.

15.7 **Counterparts.** This Agreement may be signed in counterparts, including by electronic signature, and each counterpart is an original.

SCHEDULE A - SERVICES AND JURISDICTION

Item	Details
Services	Design, build, hosting, maintenance and support of the Client's online ordering and inventory platform.
Governing law and seat of arbitration	Singapore
Service Provider notice email	legal@alphatech.example
Client notice email	contracts@betaretail.example
Initial term	24 months from 1 January 2026

SCHEDULE B - SERVICE LEVELS

Availability is measured per calendar month. If it falls below 99.5%, the Client receives service credits against the next invoice.

Schedule B - Service credits for missed availability

Monthly availability	Service credit (share of Monthly Fee)
99.5% or higher	No credit
99.0% to 99.49%	5% of the Monthly Fee
98.0% to 98.99%	10% of the Monthly Fee
Below 98.0%	20% of the Monthly Fee (maximum)

Table 3 - Service credits

Schedule B - Support response and resolution targets

Severity	Description	Response	Resolution target
Severity 1	Platform down / critical	1 hour	4 hours
Severity 2	Major feature impaired	4 hours	1 Business Day
Severity 3	Minor issue / question	1 Business Day	5 Business Days

Table 4 - Response and resolution targets

SIGNATURES

Signed by the authorised representatives of the Parties on the Effective Date.

For Alpha Tech Solutions Ltd.	For Beta Retail Co.
Name: _____ Title: _____ Signature: _____ Date: _____	Name: _____ Title: _____ Signature: _____ Date: _____

PLAIN-LANGUAGE SUMMARY (not part of the legal text)

- The deal runs for 24 months and renews yearly unless a Party gives 60 days' notice.
- The Client pays $12,500 every month plus a one-time $30,000 build fee paid in three milestones.
- Invoices are due in 30 days. Late payments cost 1.5% per month.
- The Client owns what is built once it has paid for it.
- Secrets stay secret for 5 years after the Agreement ends.
- Each Party's liability is capped at 12 months of fees, with exceptions such as fraud and confidentiality breaches.
- The Client can leave with 90 days' notice (plus an early fee in year 1); the Service Provider needs 180 days' notice.
- A breach must be fixed within 30 days or the other side can terminate.
- Disputes go to executives, then mediation, then arbitration in Singapore.

MUKHTASAR KHULASA - ROMAN URDU (qanooni matan ka hissa nahi)

Muddat: Ye muaahida 1 January 2026 se shuru hota hai aur pehli muddat 24 mahine hai. Is ke baad ye khud-ba-khud 12 mahine ke liye renew hota rehta hai, agar koi fareeq muddat khatam hone se kam az kam 60 din pehle likhit notice de kar renew na karna chahe.

Fees: Client ko har mahine $12,500 Monthly Fee deni hoti hai jo mahine ke shuru mein invoice hoti hai. Is ke ilawa $30,000 ki ek martaba Implementation Fee hai jo teen kistoon mein di jati hai: dastkhat par 40% ($12,000), go-live par 30% ($9,000) aur final acceptance par 30% ($9,000). Invoice 30 din mein ada karna zaroori hai. Der se payment par 1.5% mahana sood lagta hai.

Khatma (Termination): Client 90 din ke likhit notice se muaahida khatam kar sakta hai. Agar ye pehle 12 mahine ke andar kare to teen mahine ki Monthly Fee yani $37,500 early termination fee deni hogi. Service Provider ko 180 din ka notice dena hota hai. Agar koi fareeq bari khilaf-warzi (material breach) kare aur 30 din mein theek na kare to doosra fareeq muaahida khatam kar sakta hai.

Raazdari (Confidentiality): Khufia maloomat muaahida khatam hone ke baad bhi 5 saal tak raaz rehti hain.

Zimmedari ki had: Har fareeq ki kul zimmedari pichle 12 mahine ki fees tak mehdood hai. Dhoka, jaan ka nuqsan, gross negligence, raazdari ki khilaf-warzi aur indemnity is had se bahar hain.

Jhagre ka hal: Pehle dono taraf ke senior executives 15 din mein milte hain, phir 30 din tak mediation hoti hai, aur akhir mein ek arbitrator faisla karta hai. Arbitration ki jagah Singapore hai aur zubaan English hai.

Data protection: Service Provider ko data breach ki ittila 72 ghante ke andar deni hoti hai. Muaahida khatam hone par personal data 30 din ke andar wapis ya delete karna hota hai.

Note: Ye khulasa sirf samajhne ke liye hai. Qanooni faisle se pehle kisi wakeel (lawyer) se mashwara zaroor lein.